



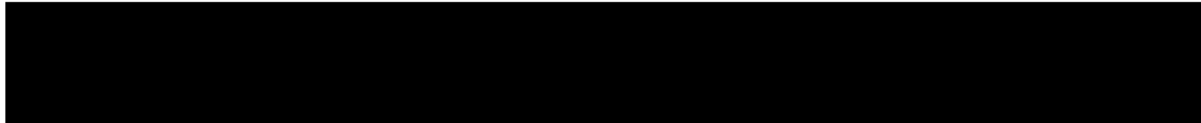
DEPARTMENT OF THE NAVY
MID-ATLANTIC REGIONAL MAINTENANCE CENTER
CONTRACTS DEPARTMENT
9727 AVIONICS LOOP
NORFOLK, VA 23511-2124

J&A Number: N50054-25-015
CODE: C426.2 / LF
P.R. Number: N00024-22-D-4411

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

JUSTIFICATION

1. CONTRACTING ACTIVITY



2. DESCRIPTION OF ACTION BEING APPROVED

This justification provides for the procurement of a Continuous Maintenance Availability (CMAV), SSP # TPPC-LPD24-MARMC25-S002, to be sole-source awarded to General Dynamics NASSCO (GD NASSCO) Norfolk, under contract number N00024-22-D-4411.

3. DESCRIPTION OF SUPPLIES/SERVICES

The CMAV work package contains a total of twenty four (24) work items; five (5) support work items and nineteen (19) repair items. The contractor (KTR) will also be tasked with completing all maintenance and preservation requirements included in the CMAV work package. The repairs will be accomplished using FY25 Operation and Maintenance Navy (OM&N) funds, with an estimated cost of [REDACTED]. The work must commence on [REDACTED]. The Government's minimum needs have been verified by the certifying technical and requirements personnel.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

The regulatory authority for this procurement is FAR 16.505(b)(2)(i)(C). The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract.

5. RATIONALE JUSTIFYING THE EXCEPTION TO FAIR OPPORTUNITY

General Dynamics NASSCO (GD NASSCO), was awarded contract number N00024-23-C-4413 on [REDACTED], for Chief of Naval Operations Docking Selected Restricted

Availability (CNO DSRA) of the USS Arlington (LPD 24). The End of Avail (EOA) date is [REDACTED]

The original start and end dates for the CNO DSRA, currently in execution was [REDACTED]. Due to unplanned events related to Main Propulsion Diesel Engine work, it caused the availability to be extended out to the NDE [REDACTED]. This in turn caused the solicitation for the CMAV, SSP # TPPC-LPD24-MARMC25-S002, which had a start and end date of [REDACTED] to be put on hold. We then experienced issues with Government Furnished Material (GFM), which resulted in extending the availability again to a completion date of [REDACTED]. This required the S002 CMAV start and end dates to shift to [REDACTED]. The CMAV is scheduled to start three days after the CNO Availability Complete Date.

Navy leadership has authorized a Logical Follow-On Continuous Maintenance Availability (CMAV) due to the CNO DSRA being near the end of its period of performance. Additionally, the work contained in this CMAV will require temporary services, rigging, crane services, etc. General Dynamic NASSCO Norfolk will be have these services in place while performing hot torques on the Main Engines and other warranty related work after [REDACTED]. There is also a work Item put in CMAV for the Side Port Doors in which the KTR could not complete in the CNO due to Long Lead Time Material (LLTM). Awarding CMAV A5A1 to General Dynamic NASSCO Norfolk under the sole source, logical follow-on exception provides the Government the most efficient way to accomplish this work within the allotted period. [REDACTED]

6. DETERMINATION OF FAIR AND REASONABLE COSTS

The Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by the J&A will be fair and reasonable. The estimated cost of this work item is based upon the Project Manager's trade knowledge and review of past history of similar work. Additionally, the contractor's fully burdened ship repair labor rate and material burden rate were determined to be fair and reasonable at time of contract and delivery order award. The labor rates and material burden rates for the work covered by this Justification will be in accordance with the basic contract and delivery order rates. The supported information provided should be sufficient to support the fair and reasonable cost determination of the procurement.

7. ACTIONS TO REMOVE BARRIERS TO COMPETITION

For reasons set forth in paragraph 5 and 6, market research was not conducted. The critical nature of the work requires that it is started immediately. Future acquisitions for similar work will be reviewed by the Contracting Officer on a case by case basis to promote the use of full and open competition in the acquisition process where possible under this multiple delivery-order contract, where possible and practicable in accordance with FAR Subpart 16.5. In addition, a copy of the change(s) covered by this justification will be forwarded to Code 200, Planning and Engineering, and Code 300 Waterfront Operations for consideration of similar work requirements in future solicitations.

CERTIFICATIONS AND APPROVAL**COMBINED TECHNICAL/REQUIREMENTS COGNIZANCE CERTIFICATION (FAR 16.505(b)(2)(ii)(B)(9)):**

I certify that the facts and representations under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

Signature Name (Print) and Title (Code) Phone No. Date

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90)):

I have determined this justification is legally sufficient.

Signature Name (Print) and Title (Code) Phone No. Date

CONTRACTING OFFICER CERTIFICATION (FAR 16.505(b)(2)(ii)(C)):

I certify that this justification is accurate and complete to the best of my knowledge and belief. Upon the basis of the above justification, I hereby approve, as Contracting Officer, the award of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of FAR 16.505(b)(2)(i)(C) sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract

Signature Name (Print) and Title (Code) Phone No. Date

APPROVAL BLOCK (FAR 6.304 for Approving Official):

Upon the basis of the above justification, I hereby approve, as (Senior Procurement Executive of the Navy, Designee of the Head of the Procuring Activity, Designee of the Head of the Contracting Activity, Competition Advocate for the Procuring Activity, Contracting Officer, as appropriate) the solicitation of the proposed procurement(s) described herein using other than full and open competition, the authority of FAR 16.505(b)(2)(i)(C) sole-source basis in the interest of economy and efficiency because it is a logical follow on to an order already issued under the contract.

Signature Name (Print) and Title (Code) Phone No. Date